

JUDGMENT SHEET

LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR

JUDICIAL DEPARTMENT

Crl. Appeal No.183 of 2014

(Azizullah Khan VS. the State etc.)

Date of hearing: 14.05.2014

Appellant by: Mian Muhammad Tayyab Wattu,
Advocate

Respondent by: Mr. Khalid Pervaiz Uppal, DPG.

SADAQAT ALI KHAN, J.:- This judgment shall dispose of Crl. Appeal No.183/2014 filed by Azizullah Khan (Dy. Superintendent of Police) present appellant against judgment dated 28.03.2014 passed by Sessions Judge/Ex-Officio Justice of Peace, District Bahawalpur according to which present appellant Azizullah Khan (Dy. Superintendent of Police) was convicted under section 228 PPC and was sentenced to pay fine of Rs.3000/- only.

2. I have heard the learned counsel for the appellant as well as learned DPG for the State and perused the record.

3. It is revealed from the record that learned Sessions Judge /Ex-Officio Justice of Peace, District Bahawalpur has not followed the procedure provided under section 480 and 482 of Cr.PC. for the trial of the offence under section 228 PPC. Section 480 of Cr.PC. is hereby reproduced for reference:-

“When any such offences as is described in section 175, section 178, section 179, section

180 or section 228 of the Pakistan Penal Code is committed in the view or presence of any Civil, Criminal or Revenue Court, the Court may cause the offender to be detained in custody and at any time before the rising of the Court on the same day may, if it thinks fit, take cognizance of the offence and sentence the offender to fine, not exceeding two hundred rupees, and, in default of payment, to simple imprisonment for a term which may extend to one month, unless such fine be sooner paid.”

Section 482 of Cr.PC. is hereby reproduced for reference:-

“(1) If the Court in any case considers that a person accused of any of the offences referred to in section 480 and committed in its view or presence should be imprisoned otherwise than in default of payment of fine, or that a fine exceeding two hundred rupees should be imposed upon him, or such Court is for any other reason of opinion that the case should not be disposed of under section 480, such Court after recording the facts constituting the offence and the statement of the accused as hereinbefore provided, may forward the case to a Magistrate having jurisdiction to try the same and may require security to be given for the appearance of such accused person before such Magistrate or if sufficient security is not given, shall forward such person in custody to such Magistrate.

(2) The Magistrate, to whom any case is forwarded under this section, shall proceed to hear the complaint against the accused person in manner hereinbefore provided.”

Section 480 Cr.PC. enjoins that when an offence under section 228 of the Pakistan Penal Code is committed in the view or presence of any civil, criminal or revenue court, the court may take cognizance of offence and sentence the offender to fine not exceeding Rs.200/- whereas in the instant case present appellant was sentenced to pay fine of Rs.3000/- illegally which sentence is not sustainable. Reliance is placed on case

titled as “*Haji Khawar Saleem v. The State*”
(2000 SCMR 1856).

4. Further present appellant had tendered un-conditional and un-qualified apology with oral statement made in the court of the learned Sessions Judge/Ex-Officio Justice of Peace, District Bahawalpur and I am satisfied that he has genuinely regretted his act and has expressed his sense of genuine contriteness. Thus, proper amends have been made.

5. Further record of this case shows that learned Sessions Judge /Ex-Officio Justice of Peace was hearing application under section 22-A Cr.PC. in his capacity as an ex-officio Justice of Peace in which impugned judgment has been passed. The provisions of section 228 PPC are only attracted to a case involving insult or interruption during a judicial proceeding which section is hereby reproduced:-

*“Whoever intentionally offers any insult, or causes any interruption to any public servant, while such public servant is sitting in any stage of a judicial proceeding, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to *[three thousand rupees], or with both.”*

6. It has already been held by the full bench of this court in case titled “*Khizar Hayat & others v. Inspector General of Police (Punjab) Lahore & others*” (PLD 2005 Lahore 470) that proceedings conducted by an ex-officio Justice of the Peace are not judicial proceedings. Relevant

Para No.12 of the judgment is hereby reproduced:-

“Adverting now to question number (b) framed by us as to whether in Pakistan a Justice of Peace or an ex-officio Justice of the Peace exercises judicial powers or his functions are merely administrative and ministerial in nature and character we have already observed above in our discussion in respect of question number (a) that the powers and duties of a Justice of the Peace or an ex-officio Justice of the Peace in Pakistan as provided in sections 22-A and 22-B, Cr.PC. do not involve any jurisdiction which can be termed as judicial in nature or character. In this context the role of a Justice of the Peace or an ex-officio Justice of the Peace in Pakistan is sharply different from that now enjoyed by their counterparts in the United Kingdom and the United States of America where some judicial role regarding summary trial of petty civil and criminal cases has been conferred upon the Justices of the Peace through legislative intervention. That surely is not the case in Pakistan where no statute confers any judicial power upon a Justice of the Peace or an ex-officio Justice of the Peace. We can, therefore, safely hold that functions to be performed by a Justice of the Peace or an ex-officio Justice of the Peace in Pakistan are merely administrative and ministerial in nature and character. We feel fortified in so holding by the provisions of section 6, Cr.PC. which categorizes the classes of criminal courts and Magistrates in Pakistan and a Justice of the Peace or an ex-officio Justice of the Peace is not included in any such class of courts of Magistrates. Apart from that sections 28 and 29, Cr.PC. specify as to which courts are to try which offences and in those sections too a Justice of the Peace or an ex-officio Justice of the Peace does not figure at all. In the case of Pir Abdul Qayyum Shah v. SHO and four others [2005 PCr.LJ 357] a learned Judge-in-Chamber of this Court has already held that a revision petition is not competent against an order passed by an ex-officio Justice of the Peace under section 22-A(6), Cr.PC. because the jurisdiction conferred under the said provision of law is administrative in nature and not judicial and, thus not amenable to revisional jurisdiction of this Court.”

7. In view of this legal position the conviction and the sentence awarded by the learned Sessions Judge in capacity of Ex-officio Justice of Peace, District Bahawalpur under section 228 PPC against the present appellant are illegal and un-sustainable. Reliance is placed on case titled “*Rabnawaz v. The State*” (2011 SCMR 1485) in which august Supreme of Pakistan has observed at page 1486 in Para No.3 as under:-

“The record of this case shows that the appellant had been proceeded against for violating/disobeying an order passed by the Additional Sessions Judge, Sargodha which order had been passed by him in his capacity as an ex-officio Justice of the Peace. The provisions of section 228, PPC are attracted to a case involving insult or interruption during a “judicial proceeding” and it has already been held by the Lahore High Court, Lahore in the cases of Khizer Hayat and others v. Inspector-General of Police (Punjab), Lahore and others (PLD 2005 Lahore 470 (FB) and Pir Abdul Qayyum Shah v. SHO and 4 others (2005 PCr.LJ 357) that proceedings conducted by an ex-officio Justice of the Peace are not judicial proceedings. In view of this legal position the appellant’s conviction and sentence recorded for an offence under section 228, PPC are clearly illegal and unsustainable. Apart from that the provisions of section 228, PPC are attracted to an insult or interruption during some judicial proceedings but in the case in hand no such insult or interruption during any judicial proceeding had been alleged against the appellant and the only allegation leveled against him was that he had failed to carry out an order passed on an earlier occasion by the Additional Sessions Judge, Sargodha.”

8. For the foregoing reasons the instant appeal is allowed and the conviction and the sentence of the appellant Azizullah Khan recorded by the learned Sessions Judge/Ex-officio Justice of Peace vide judgment dated

28.03.2014 are hereby set aside and he is
ordered to be acquitted.

(Sadaqat Ali Khan)
Judge

Approved for reporting.

M.Afzal